

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1794

 By: Stanley and Kirt of the
 Senate

6 and

7 Roe and **Hefner** of the House

8
9
10 An Act relating to mental health; creating the
11 Oklahoma Behavioral Health Vacancy Registry Act;
12 providing short title; defining terms; requiring
13 establishment of certain behavioral health vacancy
14 registry; describing registry; requiring registry to
15 include certain dedicated forensic competency module;
16 mandating certain participation and reporting;
17 requiring certain updates and accurate reporting;
18 allowing registry access and placement requests by
19 authorized referral sources; imposing certain
20 requirements and restrictions on covered facilities;
21 stating certain grounds for corrective action; making
22 registry participation voluntary for hospitals;
23 authorizing, requiring, and prohibiting certain acts
24 by hospitals; providing certain construction;
 authorizing certain audits and administrative
 remedies; directing confidentiality of registry data
 and compliance with privacy laws; authorizing certain
 public reporting; requiring issuance of certain
 request for proposals; imposing certain requirements
 and restrictions related to request for proposals;
 directing promulgation of rules; providing for
 codification; and providing an effective date.

23 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1-111.1 of Title 43A, unless
3 there is created a duplication in numbering, reads as follows:

4 This act shall be known and may be cited as the "Oklahoma
5 Behavioral Health Vacancy Registry Act".

6 SECTION 2. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 1-111.2 of Title 43A, unless
8 there is created a duplication in numbering, reads as follows:

9 As used in this act:

10 1. "Available bed" or "available treatment capacity" means a
11 staffed and operational treatment slot, within the covered
12 facility's staffed capacity, that may be assigned to a consumer
13 consistent with the covered facility's licensed level of care and
14 written admission and exclusionary criteria;

15 2. "Covered facility" means a facility, other than a hospital
16 or hospital-based psychiatric unit, that is licensed or certified in
17 this state and authorized to accept consumers for:

18 a. emergency detention, protective custody, or assessment
19 as provided by Sections 1-110 and 5-207 of Title 43A
20 of the Oklahoma Statutes, or

21 b. court-ordered competency evaluations and competency
22 restoration services as described in subsection C of
23 Section 3 of this act;
24

1 3. "Licensed capacity" means the maximum number of beds or
2 treatment slots a covered facility is licensed or certified to
3 operate;

4 4. "Referral source" means a facility, provider, court, law
5 enforcement agency, crisis services provider, or other entity
6 authorized by the Department of Mental Health and Substance Abuse
7 Services to request placement through the registry created under
8 this act; and

9 5. "Staffed capacity" means the number of beds or treatment
10 slots that are operational and supported by sufficient staffing to
11 safely admit and treat consumers.

12 SECTION 3. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 1-111.3 of Title 43A, unless
14 there is created a duplication in numbering, reads as follows:

15 A. Subject to the availability of funding, the Department of
16 Mental Health and Substance Abuse Services shall establish and
17 maintain a secure, electronic, statewide behavioral health vacancy
18 registry to expedite placements associated with:

19 1. Emergency detention, protective custody, or assessment as
20 provided by Sections 1-110 and 5-207 of Title 43A of the Oklahoma
21 Statutes; or

22 2. Court-ordered competency evaluations or competency
23 restoration services as described in subsection C of this section.
24

1 B. The registry shall provide near real-time information
2 regarding available beds and available treatment capacity at covered
3 facilities in this state.

4 C. The registry shall include a dedicated forensic competency
5 module to support court-ordered competency evaluations and
6 competency restoration services conducted pursuant to Sections
7 1175.1 through 1175.6a of Title 22 of the Oklahoma Statutes,
8 including referrals arising from findings of incompetency to stand
9 trial and orders for treatment to restore competency, in compliance
10 with all applicable state laws and any applicable state or federal
11 consent decree.

12 SECTION 4. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 1-111.4 of Title 43A, unless
14 there is created a duplication in numbering, reads as follows:

15 A. Each covered facility shall participate in the behavioral
16 health vacancy registry and report, in the manner prescribed by
17 rules promulgated by the Board of Mental Health and Substance Abuse
18 Services:

- 19 1. Licensed capacity and staffed capacity;
- 20 2. Current available beds or available treatment capacity;
- 21 3. Population served, age range, and level of care;
- 22 4. Whether the facility accepts placements associated with
23 emergency detention, protective custody, or assessment as provided
24 by Sections 1-110 and 5-207 of Title 43A of the Oklahoma Statutes or

1 court-ordered competency evaluations and competency restoration
2 services as described in subsection C of Section 3 of this act;

3 5. Admission limitations based on clinical capability or safety
4 requirements; and

5 6. Contact information for placement coordination available on
6 a twenty-four-hour basis.

7 B. 1. Covered facilities shall update registry information
8 upon a material change in availability and at intervals established
9 by the Board through rule.

10 2. A covered facility shall ensure reported availability
11 accurately reflects available beds or available treatment capacity
12 that is staffed and capable of accepting a placement at the time
13 reported.

14 C. 1. An authorized referral source may access the registry
15 for placement purposes. The registry shall allow an authorized
16 referral source to submit a placement request or reservation for an
17 available bed at a covered facility.

18 2. A covered facility shall respond to a registry placement
19 request within the time period established by the Board through rule
20 and shall document acceptance or denial in accordance with rules
21 promulgated by the Board. A registry reservation confirmed by a
22 covered facility shall be honored for the time period established by
23 the Board through rule unless:

24 a. material clinical information changes,

1 b. the consumer no longer meets the facility's written
2 admission criteria, or

3 c. the consumer meets the facility's written exclusionary
4 criteria.

5 D. A covered facility:

6 1. Shall apply its written admission criteria and written
7 exclusionary criteria in a consistent and nondiscriminatory manner;
8 and

9 2. Shall not, except for documented clinical or safety reasons,
10 refuse admission of an otherwise appropriate consumer when the
11 registry shows available treatment capacity and the consumer meets
12 the facility's written admission criteria and does not meet the
13 facility's written exclusionary criteria for placement under
14 Sections 1-110 and 5-207 of Title 43A of the Oklahoma Statutes or
15 Sections 1175.1 through 1175.6a of Title 22 of the Oklahoma
16 Statutes.

17 E. A pattern or practice of refusals by a covered facility
18 inconsistent with reported available treatment capacity or written
19 admission or exclusionary criteria, including selective acceptance
20 designed to avoid higher-acuity or forensic consumers, may
21 constitute noncompliance subject to review and corrective action by
22 the Department of Mental Health and Substance Abuse Services under
23 Section 6 of this act.

1 SECTION 5. NEW LAW A new section of law to be codified

2 in the Oklahoma Statutes as Section 1-111.5 of Title 43A, unless
3 there is created a duplication in numbering, reads as follows:

4 A. Participation in the behavioral health vacancy registry by
5 hospitals and hospital-based psychiatric units shall be voluntary
6 and on an opt-in basis, except as otherwise required by contract or
7 federal law. A participating hospital or hospital-based psychiatric
8 unit may elect to do one or both of the following:

9 1. Report staffed capacity and available bed information to the
10 registry; or

11 2. Accept placement requests through the registry under
12 standards established by rule or contract.

13 B. A hospital or hospital-based psychiatric unit that elects to
14 participate in the registry shall make good-faith efforts to keep
15 registry information reasonably current; however, delays
16 attributable to direct patient care responsibilities or completion
17 of intake or admission processes shall not constitute a violation of
18 this subsection.

19 C. A hospital or hospital-based psychiatric unit participating
20 in the registry shall not, solely by virtue of such participation,
21 be deemed a covered facility for the purposes of this act.

22 D. With respect to a hospital or hospital-based psychiatric
23 unit, receipt of a placement request through the registry does not
24 constitute acceptance of a patient, does not create a duty to accept

1 transfer of a patient, and does not create a transfer agreement.
2 Any evaluation, stabilization, admission, or transfer decision shall
3 remain subject to the Emergency Medical Treatment and Labor Act
4 (EMTALA) and applicable state law.

5 E. Nothing in this act shall be construed to expand, limit,
6 replace, or conflict with a hospital's obligations under EMTALA.
7 Hospitals participating in the registry shall remain subject to
8 EMTALA regardless of registry participation.

9 SECTION 6. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 1-111.6 of Title 43A, unless
11 there is created a duplication in numbering, reads as follows:

12 A. The Department of Mental Health and Substance Abuse Services
13 may audit behavioral health vacancy registry submissions and
14 responses by covered facilities for accuracy, timeliness, and
15 consistency with written admission criteria and written exclusionary
16 criteria.

17 B. If the Department determines that a covered facility has
18 failed to report accurately, respond timely, or comply with this act
19 or rules promulgated under this act, the Department may require a
20 corrective action plan and may impose administrative remedies as
21 provided by law.

22 SECTION 7. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 1-111.7 of Title 43A, unless
24 there is created a duplication in numbering, reads as follows:

1 A. The behavioral health vacancy registry shall not include
2 personally identifiable consumer health information.

3 B. All registry data collection and use shall comply with
4 applicable state and federal privacy laws, including the Health
5 Insurance Portability and Accountability Act of 1996 (HIPAA) and 42
6 C.F.R., Part 2 as applicable.

7 C. Registry data, including facility-submitted denial reasons
8 and response information:

9 1. Shall be confidential and shall be used only for placement
10 coordination, system oversight, and aggregate reporting as
11 authorized by subsection E of this section; and

12 2. Shall not be subject to the Oklahoma Open Records Act,
13 except for aggregate, de-identified reports as described in
14 subsection E of this section.

15 D. Nothing in this act shall be construed to require the
16 registry to collect, store, or display individual consumer
17 diagnosis, payor information, or preauthorization status, and the
18 registry shall not be used as a clinical record. Any consumer-
19 specific clinical information exchanged for purposes of placement
20 shall be transmitted outside the registry in a manner consistent
21 with applicable privacy laws.

22 E. The Department of Mental Health and Substance Abuse Services
23 may publish aggregate, de-identified reports regarding system
24 capacity, utilization, and placement timeliness.

SECTION 8. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-111.8 of Title 43A, unless there is created a duplication in numbering, reads as follows:

Within six (6) months of the effective date of this act, the Department of Mental Health and Substance Abuse Services shall, subject to the availability of funding, issue a request for proposals for the development and implementation of the behavioral health vacancy registry for the purpose of procuring any technology, platform, software, or vendor services necessary to implement, host, operate, or maintain the registry. Such request for proposals and the procurement process shall be conducted in accordance with the Oklahoma Central Purchasing Act, Section 34.12 of Title 62 of the Oklahoma Statutes, and any other applicable state procurement laws. The Department shall:

1. Prioritize vendors on a best-value basis including, but not limited to, total cost of ownership, implementation timeline, scalability, data security, interoperability, ongoing support, and long-term sustainability;

2. Give preference to proposals that provide the required technology and services at the lowest overall cost, including proposals offered at no cost to the state or participating providers, provided that such proposals meet all functional, security, and compliance requirements of this act. The Department

1 shall not require, as a condition of award, functionality beyond the
2 requirements of this act;

3 3. Allow proposals funded in whole or in part through gifts,
4 grants, donations, or in-kind contributions of hardware, software,
5 licensing, hosting, or services. The Department may accept such
6 gifts, grants, or donations, subject to applicable law, provided
7 that acceptance does not compromise data ownership, security,
8 independence, or operational control of the registry; and

9 4. Not expend state-appropriated funds for software
10 development, acquisition, licensing, or subscription to implement
11 the registry unless, after completion of the competitive procurement
12 process required by this section, the Department determines that no
13 proposal meeting the requirements of this act is available at no
14 cost to the state.

15 SECTION 9. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 1-111.9 of Title 43A, unless
17 there is created a duplication in numbering, reads as follows:

18 The Board shall promulgate rules necessary to implement the
19 provisions of this act including, but not limited to, reporting
20 standards, update intervals, placement priority standards, queue
21 management practices, access controls, documentation of denials,
22 reservation time frames, forensic module standards, compliance
23 procedures, and technical and operational standards for hospitals
24 and hospital-based psychiatric units that elect to participate.

SECTION 10. This act shall become effective November 1, 2026.

COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
OVERSIGHT, dated 04/16/2026 - DO PASS, As Coauthored.